

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #03	CCRB Case #: 201910963	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/24/2019 1:05 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/8/2022	Precinct: 63		
Date/Time CV Reported Thu, 12/26/2019 11:25 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/26/2019 11:25 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POF Sableann Gazzoli	25184	963041	063 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Giorgio Mannarino	21676	963132	063 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POF Sableann Gazzoli	Abuse: Police Officer Sableann Gazzoli threatened to arrest § 87(2)(b)				

Case Summary

On December 26, 2019, § 87(2)(b) filed this complaint over the phone with CCRB intake.

On December 24, 2019, at approximately 1:05 P.M., § 87(2)(b), § 87(2)(a) Ten to fifteen minutes later, PO Sableann Gazzoli and PO George Mannarino of the 63rd Precinct responded to § 87(2)(b) in Brooklyn, where § 87(2)(b) resides with his mother, § 87(2)(b). After speaking with § 87(2)(b) while § 87(2)(b) was present, PO Gazzoli and PO Mannarino went to a neighbor's house and viewed surveillance camera footage § 87(2)(b). When they returned to the § 87(2)(b) house, the officers stated that there was insufficient evidence to file a report. During that conversation, PO Gazzoli allegedly threatened to arrest § 87(2)(b) (**Allegation A, Abuse of Authority: § 87(2)(g)**). PO Gazzoli and PO Mannarino left without effecting any arrests or issuing any summonses.

The investigation did not obtain video footage of this incident. Two requests for body-worn camera (BWC) footage were negative. § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sableann Gazzoli threatened to arrest

§ 87(2)(b)

It is undisputed that on December 24, 2019, at approximately 1:05 P.M., PO Gazzoli and PO Mannarino arrived at § 87(2)(b)'s house in response to his 911 call § 87(2)(b). Also undisputed is that, after speaking with § 87(2)(b) while his mother was present, both officers left to check surveillance footage at a neighbor's house. They then returned to § 87(2)(b)'s house and told him that they would not file a report because they had not seen anyone entering § 87(2)(b)'s house at the time he alleged. Under dispute is whether, upon returning to § 87(2)(b)'s house, PO Gazzoli threatened to arrest § 87(2)(b).

In his verified statement to the CCRB, § 87(2)(b) stated that when the officers returned from the neighbor's house, PO Gazzoli told him, "If you're going to keep calling 911 and fabricate about these things, we're going to arrest you," and that if § 87(2)(b) made any additional reports, he would be arrested (**02 Board Review**). Further, § 87(2)(b) stated that PO Gazzoli told him not to go to the stationhouse because if he did, officers would keep him there.

In her testimony to the CCRB, § 87(2)(b) stated that while the officers refused to file a report, she did not hear either of them say anything about arresting § 87(2)(b) (**03 Board Review**). She further stated that she was with her son the whole time the officers were there and could hear the entire conversation between the officers and her son.

In her CCRB interview, PO Gazzoli testified that after returning from checking the neighbor's surveillance footage, she explained to § 87(2)(b) that if he falsified a report, he could be arrested (**04 Board Review**). While PO Gazzoli did not recall the exact language that she used when making this statement, she stated that she did not threaten to arrest § 87(2)(b). She denied telling § 87(2)(b) that if he continued to call 911 to report incidents, she would arrest him or that if he went to the stationhouse then officers would keep him there.

In his CCRB interview, PO Mannarino stated that he did not recall what PO Gazzoli said to § 87(2)(b) during the incident, but that he spoke to § 87(2)(b) more than PO Gazzoli did (**05 Board Review**). PO Mannarino stated that after returning from checking the surveillance footage, he explained to § 87(2)(b) that filing a false report is a crime for which people can be arrested, but

that he did not threaten to arrest § 87(2)(b)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been named as a victim in seven other allegations (**06 Board Review**).
 - § 87(2)(b)
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- PO Gazzoli has been a member of service for three years. This is the first CCRB complaint for which she has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On November 24, 2020, the undersigned submitted a request to determine if a Notice of Claim was filed; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt. (**07 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 3

Investigator: Rachel Adler Investigator Rachel Adler 11/27/2020
Signature Print Title & Name Date

Squad Leader: Olga Golub SL Olga Golub 11/27/2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

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